

Guddu Tiwari @ Rajesh v. State of U.P.

Allahabad High Court · Division Bench · 8 August 2014 · Criminal Misc. Writ Petition No. 13434 of 2014 · **FIR quash refused; CrPC arrest safeguards; compounding under Supply Code**

HEADNOTE

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed. Where arrest has not been made and the offence cannot attract a sentence exceeding seven years, police must follow Section 41(1)(b) read with Section 41-A CrPC. If the offence is compoundable, the accused may pursue compounding under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner sought to quash an FIR dated 24 June 2014, Case Crime No. 389 of 2014, registered at Police Station Reoti, District Ballia, under Section 135 of the Electricity Act, 2003. Arrest had not been made. He apprehended arrest in breach of Section 41(1)(b) read with Section 41-A CrPC, and submitted that the alleged offence could not attract a sentence exceeding seven years and was compoundable. The High Court perused the FIR and disposed of the criminal miscellaneous writ petition.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s.135 FIR quash, arrest safeguards, compounding

HOLDING

The FIR under Section 135 of the Electricity Act, 2003 disclosed a cognizable offence, so the prayer to quash it was refused. Arrest not having been made, and the offence not being punishable with more than seven years, any arrest must comply with Section 41(1)(b) read with Section 41-A CrPC; a complaint may be made to the Magistrate if those provisions are breached. If the offence is compoundable, the petitioner may seek compounding under the Electricity Supply Code, 2005. The writ petition was disposed of. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed. Where arrest has not been made and the offence cannot attract a sentence exceeding seven years, police must follow Section 41(1)(b) read with Section 41-A CrPC.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — COMPOUNDING OF THE S.135 OFFENCE UNDER THE ELECTRICITY SUPPLY CODE, 2005

Left to the petitioner to pursue if the offence is compoundable. ¶ 1